

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 978

Introduced by Storer, 43; Bosn, 25; DeKay, 40; Hallstrom, 1; Hardin, 48.

Read first time January 12, 2026

Committee:

- 1 A BILL FOR AN ACT relating to civil actions; to provide for civil actions
- 2 against persons for conduct relating to obscene materials, child
- 3 sexual abuse materials, and child sexual exploitation devices and
- 4 images; to define terms; to provide powers for the Attorney General
- 5 and county attorneys; to provide immunity for Internet utilities,
- 6 courts, attorneys, and agents and employees of courts and attorneys;
- 7 to provide a civil penalty; and to provide severability.
- 8 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** (1) For purposes of this section:

2 (a) Child sexual abuse material has the same meaning as in section
3 28-1802;

4 (b) Internet utility has the same meaning as in section 87-1002;

5 (c) Obscene has the same meaning as in section 28-807; and

6 (d) Prohibited content means any depiction or content that:

7 (i) Is child sexual abuse material;

8 (ii) Describes or promotes child sexual abuse material; or

9 (iii) Is obscene.

10 (2) A person shall not intentionally:

11 (a) Allow or facilitate access to prohibited content on a publicly
12 available Internet website;

13 (b) Issue, sell, give, provide, deliver, transfer, transmit,
14 circulate, or disseminate by any means on an Internet website any
15 prohibited content; or

16 (c) Create or develop prohibited content that is made available on
17 an Internet website.

18 (3)(a) Except as provided in subdivision (3)(b) of this section, an
19 individual depicted in or exposed to prohibited content may bring a civil
20 action for appropriate relief against any person who violates subsection
21 (2) of this section with respect to such prohibited content.

22 (b) This subsection does not authorize a civil action by an adult
23 whose exposure to child sexual abuse material was caused by such adult's
24 intentional viewing of such material.

25 (c) Appropriate relief in an action under this subsection includes:

26 (i) Such preliminary and other equitable relief as may be
27 appropriate;

28 (ii) Actual damages, both economic and noneconomic; and

29 (iii) Reasonable attorney's fees and other litigation costs
30 reasonably incurred.

31 (d) In an action under this subsection, the doctrine of contributory

1 negligence shall not apply, and no plaintiff shall be allocated fault
2 under Chapter 25. A person who violates subsection (2) of this section
3 shall be jointly and severally liable for damages caused by such
4 violation.

5 (4) The Attorney General may bring a civil action against a person
6 who violates subsection (2) of this section to restrain or enjoin such
7 violation and for such other equitable relief as the court deems
8 appropriate to carry out the purposes of this section.

9 (5) An Internet utility does not violate subsection (2) of this
10 section solely by providing access or connection to or from a website or
11 other information or content on the Internet or a facility, system, or
12 network not under the Internet utility's control, including providing
13 access or transmitting, downloading, or storing data, to the extent that
14 such Internet utility is not responsible, in whole or in part, for the
15 creation or development of prohibited content.

16 (6) This section is intended to create a new statutory cause of
17 action that is in addition to any other remedy that may exist under the
18 law. The duties and liabilities created under this section apply whether
19 or not the violator would be considered a publisher or distributor of
20 prohibited content under any other statutory or common law cause of
21 action.

22 (7) Sovereign immunity shall not be an affirmative defense in a
23 civil action brought pursuant to this section.

24 (8) Any remedy available under this section may be awarded without
25 regard to whether the conduct giving rise to the remedy resulted in a
26 criminal conviction.

27 **Sec. 2.** (1) For purposes of this section, prohibited content has
28 the same meaning as in section 1 of this act.

29 (2) There shall be no civil or criminal liability for the viewing or
30 possession of prohibited content by:

31 (a) A judge who does so in good faith and for purposes of a

1 proceeding before the court;

2 (b) An attorney who does so in good faith in the course of
3 representing a client or potential client; or

4 (c) An agent or employee of a judge or attorney who does so in good
5 faith and for a legitimate purpose while acting with the scope of such
6 agency or employment.

7 **Sec. 3.** (1) For purposes of this section:

8 (a) Child sexual exploitation device or image means an anatomically
9 correct mannequin, robot, doll, device, or image that:

10 (i) Has the features of, or features that resemble those of, a
11 minor; and

12 (ii) Is intended for use in sexual acts; and

13 (b) Minor means an individual under eighteen years of age.

14 (2) A person shall not:

15 (a) Knowingly buy, sell, deliver, or distribute any child sexual
16 exploitation device or image;

17 (b) Knowingly possess a child sexual exploitation device or image
18 that has been bought, sold, delivered, or distributed; or

19 (c) Possess a child sexual exploitation device or image with the
20 intent to engage in any conduct prohibited by subdivision (2)(a) of this
21 section.

22 (3)(a) A minor whose features are represented by, or intended by the
23 violation to be represented by, a child sexual exploitation device or
24 image, may bring a civil action for appropriate relief against any person
25 who violates subsection (2) of this section with respect to such device
26 or image.

27 (b) Appropriate relief in an action under this subsection includes:

28 (i) Such preliminary and other equitable relief as may be
29 appropriate;

30 (ii) Actual damages, both economic and noneconomic; and

31 (iii) Reasonable attorney's fees and other litigation costs

1 reasonably incurred.

2 (4)(a) A person who violates subsection (2) of this section shall be
3 subject to a civil penalty of not more than ten thousand dollars per
4 violation. The Attorney General or a county attorney may seek recovery of
5 such civil penalties in a civil action.

6 (b) The Attorney General or a county attorney may also bring a civil
7 action against a person who violates subsection (2) of this section to
8 restrain or enjoin such violation and for such other equitable relief as
9 the court deems appropriate to carry out the purposes of this section.

10 (c) Any civil penalties collected under this section shall be
11 remitted to the State Treasurer for distribution in accordance with
12 Article VII, section 5, of the Constitution of Nebraska.

13 **Sec. 4.** If any section in this act or any part of any section is
14 declared invalid or unconstitutional, the declaration shall not affect
15 the validity or constitutionality of the remaining portions.